

Court No. - 3

Case :- WRIT - C No. - 2609 of 2023

Petitioner :- M/S Dudhwa Adventure Resorts Private Limited Thru.
Manager Pratap Singh

Respondent :- Prin. Secy. Energy Deptt. Of Energy Lko. U.P. And 3
Others

Counsel for Petitioner :- Pradeep Kumar Tripathi

Counsel for Respondent :- C.S.C.,Aprajita Bansal,Neerav Chitravanshi

Hon'ble Rajan Roy,J.

Hon'ble Manish Kumar,J.

The petitioner is owner of the premises, wherein, there was a tenant having electricity connection in its name. The tenant has left the premises without paying the electricity bills. Now the petitioner-owner wants a new connection in its own name, which is not being considered by opposite party on account of non-payment of the electricity dues in respect to the said premises. The petitioner's counsel says that the petitioner is itself in arrears of rent pertaining to the said tenant.

This is however, not relevant for us specially as the tenant is not before us as an opposite party, if there are electricity arrears in respect of said premises, then new connection cannot be granted, unless the arrears are cleared.

Clause 4.3 of Electricity Supply Code, 2005 reads as under:-

"4.3 New Connections - General

a) The system of supply and voltage shall depend on the category of the consumer and the load as per details given in Chapter 3.

b) 3 (4) [Application form for obtaining new connection and for enhancement / reduction of load shall be made available to the applicant free of charge at all offices of the Licensee. The Licensee shall also put them on its website for downloading. Photocopies of a blank form may be made by the applicant and shall be accepted by the Licensee. The Licensee shall endeavour to introduce systems facilitating electronic filing of the applications for release of connections through meters (all categories), or filing / processing for connections through prepaid meters provided commercially viable and sustainable technology is available.]

c) The licensee / local authority shall designate Officers / authority for accepting applications in respect of sanction of load (for different categories of load) for new connection and releasing load by way of giving new connection. However the local authority for a rural area may frame it's own procedure for release of connection from time to time which shall as far as possible be in conformity to approved guidelines/specifications / costs specified by Commission.

d) All information relating to procedure, fees, designated officers for

releasing new connections may be displayed on the notice boards of Subdivision office, Divisional offices and offices of DGM's / GM's / office of licensee. Public information counters for new forms, filing, and disseminating information status in the above offices, with computerized facilities in all towns with a population greater than 10 lakhs may be made operational within a time frame of one year.

e) The electronic filing of a new application, status of connection pending to be released, and tracking of status of a connection through IVRS facility may also be made possible in a phased manner in all cities, through use of information technology, on the internet website, centralized call centres, and proper linking with the subdivision / Division / DGM / GM offices.

f) 3 (1) [(i) It will be the duty of the seller and of the purchaser to find out the outstanding electricity dues up to the date of sale, and further that both seller and purchaser will be either/or, jointly and severally liable to pay the outstanding electricity dues/ obtain No dues certificate.

(ii) Before sale of a premise is made, the outstanding dues will be cleared and, in the alternative the deed to agreement / sale will specifically mention the outstanding dues and the method of its payment. "Outstanding dues" means all dues pending on a premises including late payment surcharge.

(iii) In case the no-dues certificate is not obtained by the old owner, new owner before purchase of property may approach the licensee for no-dues certificate, by giving the reference of the connection in said premises. The licensee shall either intimate the pending dues, if any, on the premises or issue no dues certificate within 30 working days from the date of application.

(iv) The outstanding dues will be first charge on the assets of the company, and the licensee shall ensure that this is entered in an agreement with new applicant.

(v) The recovery proceedings against the defaulting consumer, and where the defaulting consumer is a company, from the Directors of the company, shall be ensured. Where a financial institution has auctioned the property without consideration to licensees charge on assets, claims may be lodged with the concerned financial institution with diligent pursuance.

(vi) In case the electricity connection to the said premises was given with the consent of house owner, such person shall ensure the payment of all arrears/ dues of electricity by the tenant before the tenant vacates the premises.

(vii) However the above conditions shall not apply if inconsistent with the provision of any higher court order or an order as a consequence to it.

(viii) The application shall be processed by licensee on clearing of dues.]

g) Where the property has been legally sub-divided, the outstanding dues for the consumption of energy on such premises, if any, shall be divided on pro-rata basis.

h) A new connection to such sub-divided premises shall be given only after the share of outstanding dues attributed to such sub-divided premises, is duly paid by the applicant. Licensee shall not refuse connection to an applicant only on the ground that, dues on the other portion(s) of such premises have not been paid, nor shall the licensee demand record of last paid bills of other portion(s) from such applicants."

The aforesaid provisions have not been challenged by the petitioner. As long as the said provisions exists, we find it difficult to grant any relief to the petitioner. Petitioner's counsel has not been able to place before us any law to the contrary. As regards recovery of electricity dues from the said tenant, the opposite party should proceed in accordance with law and take the proceedings to its logical conclusion. Apart from it, no observation or direction can be made. We even offered to the petitioner that if he is ready to deposit the due amount without prejudice to its recovery from the erstwhile tenant and if amount is recovered from him, it shall be paid back to the petitioner, then, we can order for grant of new electricity connection subject to the aforesaid payment but learned counsel for the petitioner did not give any categorical reply, therefore, our hands are tied.

The writ petition is disposed of.

Order Date :- 6.4.2023

Ashutosh Pandey